



DECISION

POS/8075/2022/KC

Complaint No. :

Name and address
of the complainant :

Mr. Noor-ul-Huda,
R/o. House No. 438/2, Makhdoom Shah Colony, Sector 11
½, Orangi Town, Karachi

Name of the Agency
complained against :

Police Department

Name & Designation of
Investigating Officer :

Mr. Iqbal Nafees Khan
Regional Director, Karachi Central.

Subject :-

**ALLEGED INACTION OF POLICE, P.S. PAKISTAN
BAZAR, KARACHI, AGAINST OBSTRUCTION IN
CONSTRUCTION ON PLOT NO. 370, SHEET NO. 01,
SECTOR 14-D, ORANGI TOWN, KARACHI**

COMPLAINT

Mr. Noor-ul-Huda filed a complaint on 21.12.2022, stating that certain anti-social elements and members of the so-called *Bhatta Mafia* were creating hurdles in the construction on his leased and lawful Plot No. 370, Sheet No. 01, Sector 14-D, Orangi Town, Karachi. Despite reporting the matter to Police Station Pakistan Bazar, no action was taken against the alleged culprits. He accordingly approached this Institution seeking redressal of his grievance.

PROCEEDINGS

2. The complaint was examined and admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended in 2020), after condonation of delay, and was thereafter referred to the Agency for submission of its report.
3. In response, Sub-Inspector Jawed Akhtar, Enquiry Officer, Police Station Pakistan Bazar, vide report dated 28.02.2023, stated that he contacted the complainant telephonically to record his statement. The complainant informed that his mother, Mst. Hameeda Khatoon, the lessee of the said plot, had filed Criminal Miscellaneous Application No. 4011 of 2022 before the Court of Additional District & Sessions Judge-IX, Karachi West, in respect of the matter.
4. Subsequently, the SHO, Police Station Pakistan Bazar, vide letter dated 10.10.2024, submitted the order sheet dated 28.09.2022 passed by the Court in Criminal Miscellaneous Application No. 4011 of 2022, wherein the Court observed as under:-

"Since the dispute between the parties is of civil nature, therefore, the applicant has failed to make out case for issuance of direction to the SHO of PS Pakistan Bazar for lodging FIR, However the applicant is at liberty to approach the competent Court of law, if so desired. Police is directed to protect the rights of parties according to law. With such directions, the instant petition stands disposed of".

5. The SHO further stated that the petitioner was contacted on multiple occasions on his cell phone and was requested to visit the Police Station for recording of his statement but he didn't turn up. This reflects his lack of interest in pursuing the case.

6. The Agency's report was forwarded to the complainant for submission of a rejoinder. However, no response was received. The non-response on the part of the complainant further indicates his unwillingness to pursue the complaint.
7. In view of the judgment passed by the Hon'ble Court and the non-response of the complainant, further proceedings in the matter are hereby abated.

DECISION

8. The case stands disposed of as closed and consigned to record.

Given under my hand and seal of this office.



Sd /-

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz (PAS)

OMBUDSMAN SINDH

Karachi, the 13th January, 2026

